

Form 60A.16

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent[s]

Notice of Motion for Disposition Order

TAKE NOTICE: Sharing identifying information, including copies of documents, from this proceeding verbally, in writing or through the internet, including Facebook, Snapchat, Instagram or any other social media, is an offence pursuant to section 94(1) of the *Children and Family Services Act*, punishable by a fine of up to \$10,000 and imprisonment for 2 years.

To: [name each respondent entitled to notice]

Motion for disposition order

[Minister of Community Services/Mi'kmaw Family and Children's Services], the applicant in this proceeding, moves for a disposition order to be granted under subsection 42(1) of the *Children and Family Services Act* at a hearing under section 41 of the *Act*.

Time and place for hearing of motion

The motion is to be heard by a judge at a [prehearing conference/disposition hearing] to be held on [date], 20 at [a.m./p.m.] in the Courthouse [address], Nova Scotia.

Evidence

The evidence in support of the motion is as follows:

- 1 affidavit of [name] sworn on [date], and filed with this notice.
- 2 affidavit of [name] sworn on [date], already filed in this proceeding.

3 affidavit of [name] to be sworn and filed before the deadline, about [insert details of the anticipated evidence of the witness] .

Also, the evidence will include the agency's plan for the child's care.

A copy of each affidavit and the agency's plan for the child's care is to be delivered to you with the notice.

Possible order against you

You may attend the hearing of the motion, and state your position on whether the proposed order should be made. If you do not attend, the judge may grant an order without further notice to you.

Counsel

You may retain and instruct counsel to represent you at the hearing. If you are unable to afford a lawyer, a lawyer may be available through the local Legal Aid office. If you wish to be represented by a lawyer, you should contact a lawyer as soon as possible.

Signature

Signed [date] , 20

Signature

Print name: